CONTRACT TITLE: Customer Application Service Agreement
CONTRACT ID: C02
CONTRACT TYPE: saas
EFFECTIVE DATE: 2027-01-01
PARTY A: Aurora Systems Private Limited (the "Company")
PARTY B: Cedar Market Private Limited (the "Counterparty")
GOVERNING LAW: India

1 PARTIES AND APPLICATION

1.1 Aurora Systems Private Limited (P01, Service Supplier) supplies APP-ATLAS to Cedar Market Private Limited (P03, Customer). APP-ATLAS depends entirely on Nimbus service SVC-ATLAS identified in Aurora hosting agreement C01. Cedar is not a party to C01. Company legal notice address: aurora-legal@aurora.example. Counterparty legal notice address: legal@cedar.example.

2 TERM AND FEES

2.1 Signed on 2026-12-16; effective 2027-01-01 through 2027-12-31 inclusive, with no automatic renewal. Cedar pays Aurora INR 300,000 monthly by the fifth day at 17:00 UTC. No late charge is specified.

3 CUSTOMER SERVICE REMEDY

3.1 For each distinct incident of more than 30 consecutive minutes of complete APP-ATLAS unavailability, Aurora owes Cedar a service credit of INR 15,000, capped at INR 45,000 per UTC month of outage start. Exactly 30 minutes does not qualify. This credit accrues automatically on restoration; Cedar need not file a claim. It is Aurora payable exposure.

4 EXCLUSIONS AND DEPENDENCE

4.1 No maintenance exclusion applies to the service credits in this agreement, even for maintenance approved under C01. Nimbus failure does not excuse Aurora performance. Separate restoration and outage records distinguish incidents. Duplicates and corrections for one incident do not create additional credits.

5 LIABILITY BOUNDARY

5.1 The service credits in clause 3.1 of C02 are the sole monetary remedy for unavailability. Do not add speculative lost profits. Recoverable hosting credits under C01 do not reduce the gross amount owed to Cedar; show any net illustration separately and label it contingent on recovery.

6 NOTICE AND TERMINATION

6.1 Material breaches other than unavailability require written notice received at aurora-legal@aurora.example and a 10-calendar-day cure period ending at 17:00 UTC on the tenth following date. An uncured breach permits a separate termination notice after the cure deadline.

7 DISPUTES

7.1 Indian law governs. Pune courts have exclusive jurisdiction for disputes arising solely under C02. A joint proceeding including claims under any other agreement requires a separately signed forum agreement by all relevant parties; no such agreement is attached.

8 OTHER AGREEMENTS

8.1 C02 governs APP-ATLAS subscription services only. A separate agreement between the same parties does not amend, replace, or consolidate C02 unless it expressly identifies the changed provisions. Rights already accrued survive expiry.

9 TIME AND EVIDENCE

9.1 All dates and times use UTC, with calendar days and no holiday adjustments. Date-only deadlines end at 17:00 UTC. Logs linking SVC-ATLAS to APP-ATLAS are sufficient incident observations for this service chain. Financial amounts exclude taxes.

10 EXECUTION

10.1 Mira Sen for Aurora and Isha Shah for Cedar record execution on 2026-12-16.

11 LIMITATION OF LIABILITY

11.1 Service-credit liability is limited to INR 45,000 per UTC calendar month under clause 3.1. Other aggregate liability is capped at INR 1,000,000, except fraud, wilful misconduct and indemnity obligations.

12 INDEMNITY

12.1 Each party shall indemnify the other against third-party claims caused by its infringement of intellectual property rights or unauthorized disclosure of confidential information, including reasonable defense costs. The indemnified party shall promptly notify the other party and reasonably cooperate in the defense.

13 CONFIDENTIALITY

13.1 Each party shall protect the other party non-public commercial, technical and personal information, use it only to perform this agreement, and restrict access to personnel bound by confidentiality. These obligations survive termination for 3 years, except information already public without breach.

14 COMPLIANCE

14.1 Each party shall comply with laws applicable to its own performance, including the Digital Personal Data Protection Act, 2023 where applicable and GDPR for processing within its applicable scope. Where personal data is processed, access controls and documented incident-response procedures shall be maintained. No ISO certification is represented by this clause.

15 ASSIGNMENT

15.1 Neither party may assign this agreement without the other party prior written consent, except an assignment to an affiliate on 30 calendar days written notice if the assigning party remains liable. A change of control does not silently replace a contracting party or waive a consent requirement.

16 FORCE MAJEURE

16.1 A party prevented from performing by an event beyond its reasonable control shall notify the other party within 5 calendar days after discovery and provide evidence of the affected obligation and mitigation. Accrued payment obligations are not excused. Relief requires a causal connection and does not apply automatically to every outage or supplier delay.

17 EXCLUSIVITY

17.1 This agreement is non-exclusive. No non-compete or restriction on dealing with other counterparties is imposed except as expressly stated in this clause.

18 TERMINATION FOR CONVENIENCE

18.1 Either party may terminate for convenience by written notice received at the other party legal notice address at least 30 calendar days before the proposed termination date. Accrued payment obligations and express survival provisions remain effective. Any expressly agreed early-exit fee remains subject to its stated conditions.

19 OFFICE-DEPENDENT SUPPORT

19.1 Throughout the term ending 2027-12-31, Aurora shall maintain the staffed APP-ATLAS support operation at office UNIT-5 covered by lease C05. Relocation requires Cedar prior written approval. No relocation approval is attached. The initial C05 lease term ends on 2027-06-30 and has its own renewal and notice provisions.